

1 KOSTIANTYN MARS
6001 W Parmer Ln, Ste 370 448
2 Austin, TX 78727
Phone Number: 202.505.9444
3 Email: legal@marsjustice.io

4 KOSTIANTYN MARS, PRO SE

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6 **UNITED STATES DISTRICT COURT**
7 **NORTHERN DISTRICT OF CALIFORNIA**
8 **SAN JOSE DIVISION**

9 KOSTIANTYN MARS

10 Plaintiff,

11 vs.

12 STATE OF CALIFORNIA;

13 GAVIN NEWSOM, in his official capacity as Governor of the
14 State of California;

15 BETH MCGOWEN, in her official and individual capacities as
16 Presiding Judge of the Santa Clara County Superior Court;

17 JULIE EMEDE, in her official and individual capacities as
18 Presiding Judge of the Santa Clara County Superior Court;

19 SANTA CLARA COUNTY SUPERIOR COURT;

20 HANNA MARS

21 (Petitioner in the above-referenced state matters);

22 and all other judges, officials, agents, and co-conspirators acting
23 under color of law, including but not limited to Stephen Lowney,
24 Andrea Flint, James Towery, Thomas Kuhnle, Benjamin
25 Williams, Michael Clark, and Jessica Tenorio,

26 Defendants.

) Case No. :

)
) **MOTION TO TRANSFER**
) **VENUE**
) **TO THE WESTERN**
) **DISTRICT OF TEXAS,**
) **AUSTIN DIVISION**
) **(28 U.S.C. § 1404(a))**

) **DATE:**

) **TIME:**

) **DEPT:**

27
28 **MOTION TO TRANSFER VENUE**
TO THE WESTERN DISTRICT OF TEXAS, AUSTIN DIVISION
(28 U.S.C. § 1404(a))
(Removal of Five Related State Court Matters)

Plaintiff Kostiantyn Mars, appearing pro se, respectfully moves this Court to transfer the
above-captioned action to the United States District Court for the Western District of Texas,
Austin Division, pursuant to 28 U.S.C. § 1404(a).

I. INTRODUCTION

This action arises from documented concealment of three judicial disqualifications by Presiding Judge Beth McGowen of the Santa Clara County Superior Court, the continued enforcement of void orders issued by disqualified judges (including unlawful arrests, fabrication of criminal record, wages garnishment, kidnapping of Petitioner's son Max Mars and child trafficking outside United States to war zone in Ukraine), repeated denial of access to court, and related racketeering activity conducted under color of law.

Following Plaintiff's reports to federal authorities concerning the conduct of Presiding Judge Beth McGowen and disqualified Judge Stephen Lowney, Presiding Judge Julie Emede implemented policies that effectively denied public and remote access to Santa Clara County Superior Court proceedings for residents of Santa Clara county. This denial of public access to judicial proceedings implicates Santa Clara county residents rights under the **First Amendment** (right of access to judicial proceedings) and the **Fourteenth Amendment** (right of meaningful access to the courts).

Plaintiff respectfully submits that he cannot obtain a fair and impartial hearing in the Northern District of California. Accordingly, transfer of this action to the United States District Court for the Western District of Texas, Austin Division, is required in the interest of justice pursuant to 28 U.S.C. § 1404(a).

This Motion is filed in connection with Plaintiff's Notice of Removal, submitted concurrently herewith, which removes the following five related state court actions from the Santa Clara County Superior Court:

- Criminal Case No. B2402220
- Domestic Violence Case No. 22DV000779
- Family Law / Divorce / Custody Case No. 22FL003144
- Name Change Case No. 24CV441024
- DCSS Wage Garnishment and Arrears Enforcement Case No. 200000002626999

Plaintiff respectfully moves this Court to transfer the above-captioned action, together with all related removed state court matters, to the United States District Court for the Western District of Texas, Austin Division.

II. FACTUAL BACKGROUND

1. Three judges assigned to Plaintiff's cases (Judge Andrea Flint, Judge Stephen Lowney, and Judge James Towery) were timely disqualified under California Code of Civil Procedure § 170.3.
2. Presiding Judge Beth McGowen concealed these disqualifications from the public record and from the California Judicial Council's PAJAR system, allowing disqualified judges to continue issuing orders after they lost jurisdiction (see Consolidated Evidence Binder – Exhibit A, Set 2, Exhibits A-7 through A-23).
3. Plaintiff has been repeatedly denied hearings and meaningful access to court despite his presence and requests for relief.
4. Plaintiff resides in Austin, Texas, where he continues to suffer ongoing harm, including the inability to access his blocked 401(k) and inability to obtain employment due to fabricated criminal records.
5. The international abduction of Plaintiff's minor son, Max Mars, to Ukraine further requires neutral federal oversight outside the Northern District of California.

III. LEGAL STANDARD

Under 28 U.S.C. § 1404(a), a district court may transfer any civil action to any other district where it might have been brought for the convenience of parties and witnesses and in the interest of justice.

IV. ARGUMENT

A. Plaintiff Cannot Obtain a Fair Hearing in the Northern District of California

The documented concealment of judicial disqualifications by Presiding Judge Beth McGowen creates a reasonable appearance of institutional bias and conflict of interest. Because this case directly implicates senior judicial officers of the Santa Clara County Superior Court and the concealment of their disqualifications, Plaintiff has a well-founded belief that he cannot obtain impartial adjudication in this District.

1 **B. The Interest of Justice Strongly Favors Transfer**

2 The interest of justice weighs heavily in favor of transfer where there is substantial evidence
3 that the plaintiff cannot obtain a fair hearing in the original forum due to systemic issues
4 involving concealment of judicial disqualifications and denial of access to court.

5 Plaintiff's residence in Texas and the location of ongoing harm further support transfer to the
6 Western District of Texas.

7 **V. CONCLUSION**

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9 For the foregoing reasons, Plaintiff respectfully requests that this Court transfer this action to
10 the United States District Court for the Western District of Texas, Austin Division.

11 Respectfully submitted,

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13 DATED: June 20, 2026

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16 KOSTIANTYN MARS
17 Pro Se
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